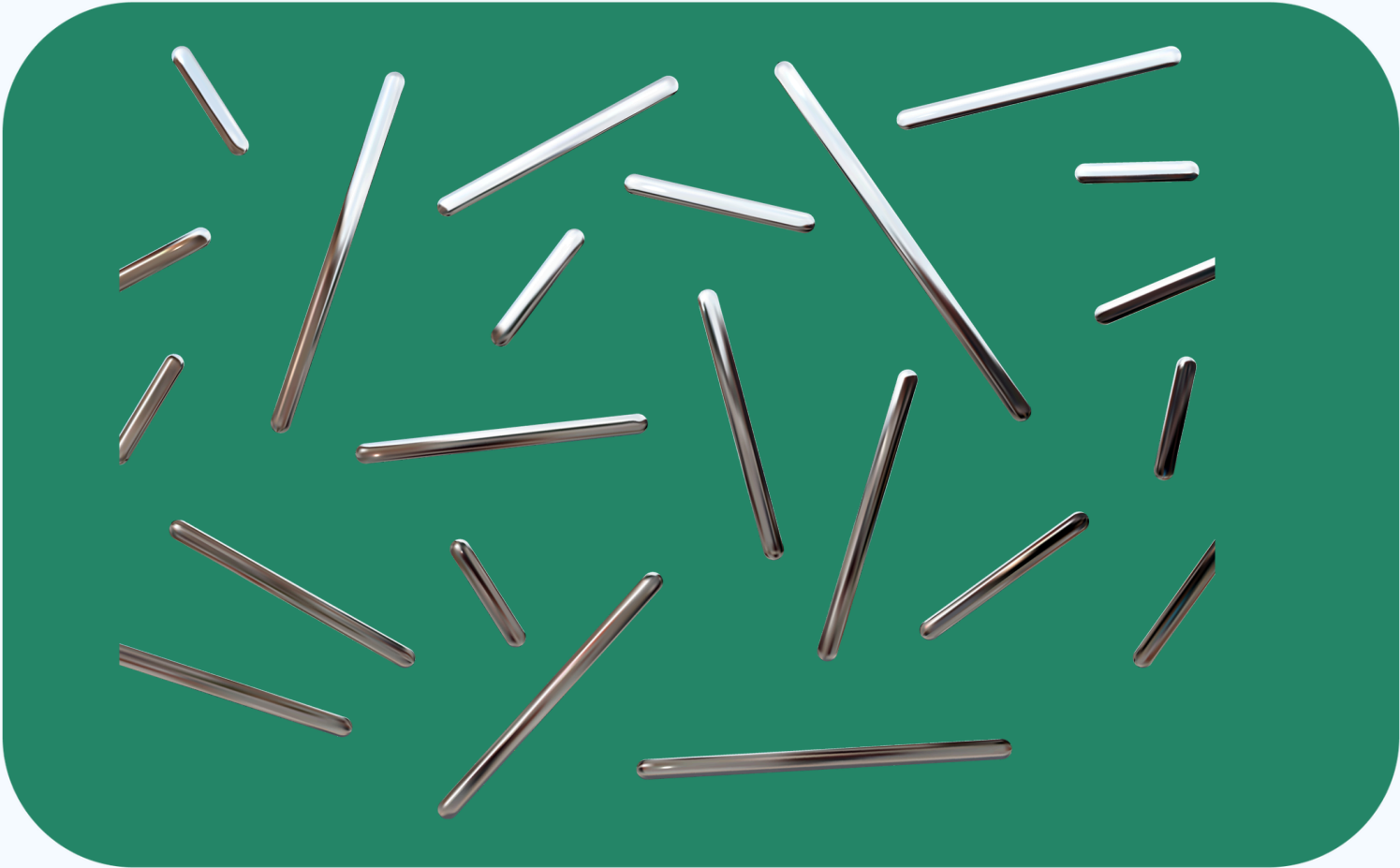




Prepared for:
[Customer.FirstName]
[Customer.LastName]



ENGAGEMENT ACTIVATION RETAINER

Prepared by:
Michael Hart Consulting Group LLC
Michael Hart

ENGAGEMENT ACTIVATION RETAINER

This Engagement Activation Retainer (this "Agreement") is entered into as of the date last signed below (the "Effective Date") by and between:

Customer: [Client.Company], with its principal place of business at [Client.StreetAddress], [Client.City], [Client.State] [Client.PostalCode] ("Customer"); and Contractor: Michael Hart Consulting Group LLC, a Georgia limited liability company, with its principal place of business at 246 Round Pond Drive, Lilburn, GA 30047 ("Contractor").

Customer and Contractor desire to enter into a professional services relationship in which Contractor will provide consulting, advisory, and related services as described in this Agreement and in Attachment A (Statement of Work). Attachment A incorporates by reference the scope and deliverables set forth in the proposal previously provided by Contractor to Customer. In the event of a conflict between this Agreement and Attachment A, the terms of this Agreement shall control unless Attachment A expressly states otherwise in writing.

1. DEFINITIONS

For purposes of this Agreement, the following terms shall have the following meanings:

- a. "Services" means any and all services specified in the Statement of Work (as defined below).
- b. "Deliverables" means written work product, analyses, reports, memoranda, and other material specified in the Statement of Work.
- c. "Project" means the combination of Services and Deliverables to be provided under this Agreement.

2. STATEMENT OF WORK

Contractor shall perform and deliver the Project as set forth in the Statement of Work issued against and subject to the terms and conditions of this Agreement.

The work which Contractor shall perform shall be specified in the Statement of Work—attached hereto as Attachment A—which will be written under the terms and conditions of this Agreement. The Statement of Work shall specify: (i) description of Services and Deliverables, (ii) schedule for Deliverables, and (iii) price and payment schedule.

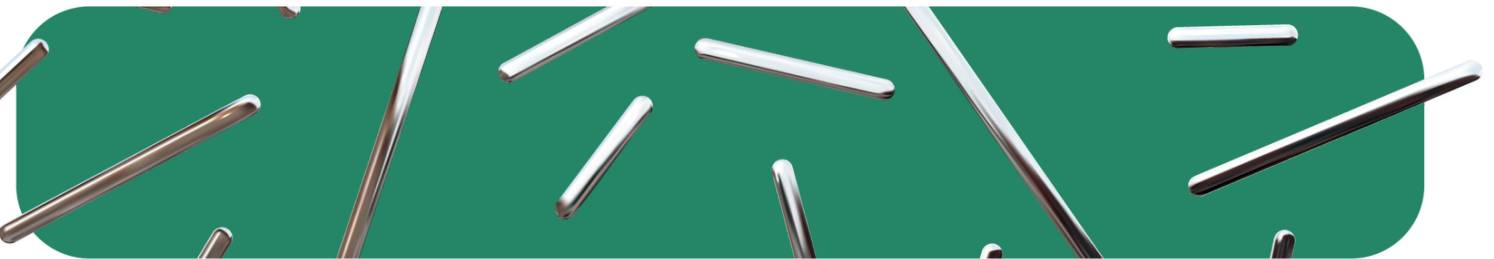


3. TERM

The term of this Agreement shall commence on the Effective Date and shall continue until the Services and Deliverables under Attachment A are completed, or until terminated in accordance with Section 11 below.

4. COMPENSATION AND PAYMENT

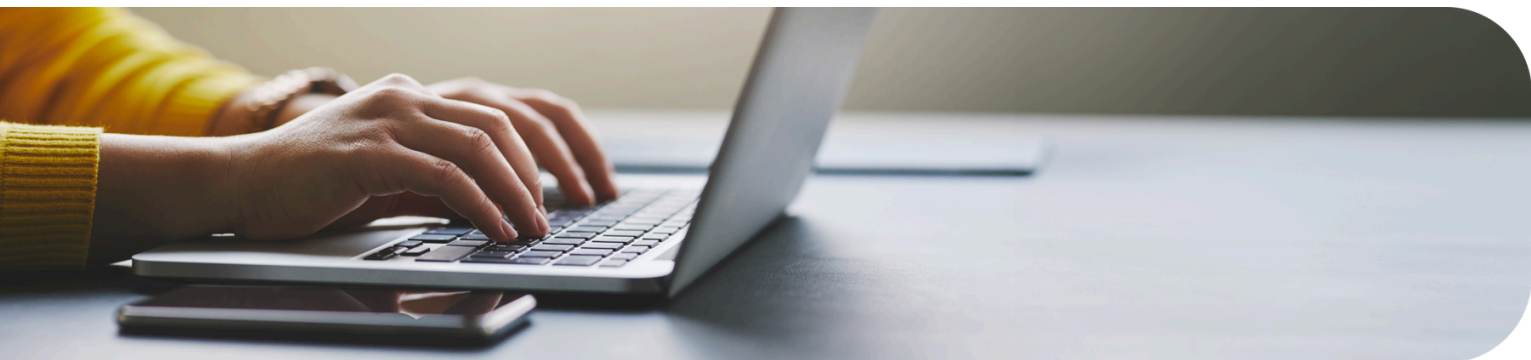
- a. Engagement Activation Retainer. Upon execution of this Agreement, Customer shall pay Contractor a one-time Engagement Activation Retainer in the amount set forth in Attachment A (the "Retainer"). Payment of the Retainer is due upon signing and activates the engagement, including initial discovery, analysis preparation, and engagement setup.
- b. Additional Services. Fees for services beyond the Retainer scope—including ongoing advisory, forensic analysis, implementation support, or expanded scope—shall be billed separately as set forth in Attachment A or pursuant to a written change order signed by both parties.
- c. Expenses. Unless otherwise stated in Attachment A, travel and other pre-approved out-of-pocket expenses shall be invoiced at actual cost with supporting documentation.
- d. Invoices and Payment Terms. Customer will receive invoices as set forth in Attachment A. Invoices are due and payable within fifteen (15) days of the invoice date unless otherwise specified in Attachment A. Amounts not paid when due may accrue interest at the lesser of 1.5% per month or the maximum rate permitted by law. If any invoice remains unpaid, Contractor may suspend Services without liability until the matter is resolved.
- e. Taxes. All fees exclude applicable sales, use, or similar taxes. Customer is responsible for such taxes, excluding taxes based on Contractor's income.
- f. Change Orders. Any additional or unscheduled Services outside Attachment A must be mutually agreed in writing by both parties and reference this Agreement.



5. WORK PRODUCT AND INTELLECTUAL PROPERTY

- a. Customer Materials. Customer retains all rights to information, data, records, and materials provided to Contractor ("Customer Materials").
- b. Deliverables. Upon full payment of all amounts due, Customer shall own the final written Deliverables specifically prepared for Customer under this Agreement (e.g., reports, memoranda, analyses), excluding Contractor Proprietary Items (defined below).
- c. Contractor Proprietary Items. Contractor retains all rights to its pre-existing materials, methodologies, frameworks, templates, tools, processes, know-how, and general consulting approaches ("Contractor Proprietary Items"), including any improvements thereto developed during the engagement. Nothing in this Agreement assigns or transfers Contractor Proprietary Items to Customer.
- d. License to Customer. Contractor grants Customer a perpetual, non-exclusive, royalty-free license to use Contractor Proprietary Items solely as embedded in or necessary to use the Deliverables for Customer's internal business purposes.
- e. No Software Transfer. Unless expressly stated in Attachment A, Contractor does not deliver custom software, source code, or object code under this Agreement.





6. ACCEPTANCE

Deliverables shall be deemed accepted upon delivery unless Customer provides written notice of material nonconformity within ten (10) business days of delivery, with sufficient detail for Contractor to remedy the issue. Contractor shall use commercially reasonable efforts to correct any validated nonconformity. If Customer does not provide timely written notice, the Deliverables shall be deemed accepted.



7. WARRANTIES AND REMEDIES

1. a. Professional Services. Contractor warrants that Services will be performed in a professional and workmanlike manner consistent with industry standards for similar consulting engagements.
- b. No Other Warranties. EXCEPT AS EXPRESSLY STATED IN THIS SECTION, CONTRACTOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.
- c. Remedy. Customer's sole remedy for breach of the warranty in Section 7(a) shall be re-performance of the nonconforming Services at no additional charge, or a refund of fees paid for the nonconforming portion of Services, at Contractor's option.
- d. Customer Dependencies. Contractor does not warrant outcomes dependent on incomplete, inaccurate, or delayed information provided by Customer or third parties.



8. LIMITATION OF LIABILITY

Contractor's total liability to Customer for any claim arising out of this Agreement shall not exceed the total fees paid by Customer to Contractor under the applicable Statement of Work giving rise to the claim during the twelve (12) months preceding the claim.

In no event shall either party be liable for indirect, incidental, special, consequential, or punitive damages, including loss of profits, revenues, data, or business opportunity, even if advised of the possibility of such damages.

Time for Claims. Any claim against Contractor must be brought within one (1) year after the cause of action arises.

9. INDEMNIFICATION

a. By Customer. Customer shall defend, indemnify, and hold harmless Contractor from claims arising out of (i) Customer Materials, (ii) Customer's misuse of Deliverables, or (iii) Customer's violation of applicable law, except to the extent caused by Contractor's gross negligence or willful misconduct.

b. By Contractor. Contractor shall defend, indemnify, and hold harmless Customer from third-party claims that Deliverables prepared solely by Contractor and delivered under this Agreement infringe a U.S. intellectual property right, except to the extent arising from Customer Materials or Customer-directed specifications.

c. Process. The indemnified party shall provide prompt notice, reasonable cooperation, and allow the indemnifying party to control defense and settlement (no settlement imposing obligations on the indemnified party without consent).



10. FORCE MAJEURE

Neither party shall be liable for failure to perform, nor be deemed to be in default, under this Agreement for any delay or failure in performance resulting from causes beyond its reasonable control, including but not limited to failure of performance by the other party, acts of state or governmental authorities, acts of terrorism, natural catastrophe, fire, storm, flood, earthquake, riot, insurrection, civil disturbance, sabotage, embargo, blockade, acts of war, or power failure. In the event of such delay, the date of delivery or time of completion will be extended by a period of time reasonably necessary to overcome the effect of any such delay.

11. TERMINATION

a. Termination for Convenience. Either party may terminate this Agreement upon thirty (30) days' written notice to the other party.

b. Termination for Cause. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure within fifteen (15) days after receiving written notice of breach.

c. Effect of Termination. Upon termination, Customer shall pay all undisputed fees and expenses for Services performed through the termination date. Sections intended to survive (including confidentiality, limitation of liability, payment obligations, and work product terms) shall survive termination.

d. Suspension for Nonpayment. Contractor may suspend Services if undisputed invoices remain unpaid more than fifteen (15) days after due date, without liability, until payment is received.



12. CUSTOMER COOPERATION

Customer shall provide timely access to personnel, systems, records, and information reasonably required for Contractor to perform the Services. If Customer delays or fails to provide required cooperation, schedule dates may be adjusted accordingly, and Contractor may invoice for work performed through the date of delay or suspension.

13. CONFIDENTIALITY

Contractor and Customer acknowledge that during the course of the performance of a Project, information of a confidential nature may be disclosed between the parties. Such information, excluding the Deliverables and any other information incident to the Deliverables that a party could reasonably be expected to be provided to the other party as contemplated hereunder, shall be considered confidential information ("Confidential Information").

Neither party has the right to disclose the Confidential Information of the other, in whole or in part, to any third party, and neither party will make use of the Confidential Information of the other for its own or a third party's benefit or in any way use such Confidential Information other than for the purposes of performance of this Agreement without the prior written consent of the disclosing party. Each party agrees to take all steps reasonable to protect the other's Confidential Information from unauthorized use and/or disclosure.

The parties agree not to copy in whole or in part, any Confidential Information nor modify the same in any way without prior written consent from the other party. Neither party will be liable to the other for the disclosure of Confidential Information if, as shown by clear and convincing evidence, the Confidential Information: (a) is generally known to the public at the time of disclosure by the disclosing party; or (b) becomes generally known to the public through no fault of the receiving party; or (c) was lawfully in the possession of the receiving party prior to signing this Agreement; or (d) is subject to applicable United States laws or a valid court order requiring disclosure of such Confidential Information.



In any judicial proceeding, it will be presumed that the Confidential Information in question constitutes protectable trade secrets of the disclosing party, and the receiving party shall bear the burden of proving that the Confidential Information was publicly or rightfully known or disclosed.

14. PUBLICITY

Neither party may use the other party's name, logo, trademarks, or identify the other as a client or vendor in marketing materials, case studies, press releases, or public statements without the other party's prior written consent.

15. SUBCONTRACTING

Contractor may, at its option, subcontract work under a Statement of Work but Contractor's use of subcontractors shall not affect its responsibilities under the applicable Statement of Work. Moreover, Contractor shall be fully responsible for work done by its subcontractors within the scope of the applicable Statement of Work as it is for work done by its own employees.

Contractor shall have written agreement(s) with its subcontractors that contain, at a minimum, clauses that are the same as or comparable to the sections of this Agreement regarding ownership rights and confidentiality of Customer's materials.



16. GENERAL TERMS

1. a. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Georgia, without regard to conflict-of-law principles.

b. Notices.

To Contractor:

Michael Hart Consulting Group LLC

246 Round Pond Drive, Lilburn, GA 30047

Email: michael@michaelhartconsulting.com

To Customer:

[Client.Company]

[Client.StreetAddress], [Client.City], [Client.State] [Client.PostalCode]

Email: [Client.Email]

c. Severability and Assignment. If any provision is invalid or unenforceable, the remainder remains in effect. Customer may not assign this Agreement without Contractor's prior written consent.

d. Entire Agreement. This Agreement, Attachment A, and referenced Proposal constitute the entire agreement and supersede prior discussions or agreements relating to the subject matter.

e. Counterparts; Electronic Signatures. This Agreement may be executed in counterparts and by electronic signature, each of which is deemed an original.



[Company website]

f. Independent Contractor. Contractor is an independent contractor. Nothing in this Agreement creates an employment, partnership, or joint venture relationship.

In Witness Whereof, the parties have executed this Agreement as of the Effective Date.

CONTRACTOR: Michael Hart Consulting Group LLC

Name: Michael Hart

Title: Managing Member

CUSTOMER: [Client.Company]

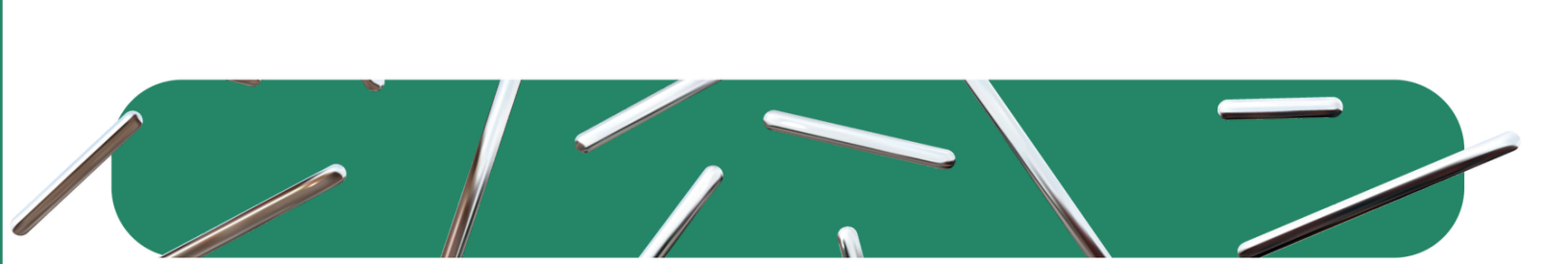
Name: [Client.FirstName] [Client.LastName]

[Contractor.FirstName] [Contractor.LastName]

[Customer.FirstName] [Customer.LastName]



[Company website]



ATTACHMENT A

STATEMENT OF WORK

This Statement of Work ("SOW") is entered into by and between Michael Hart Consulting Group LLC ("Contractor") and [Client.Company] ("Customer") under the Engagement Activation Retainer between the parties (the "Agreement"), effective as of the Effective Date.

1. Background

Customer received a proposal from Contractor dated [PROPOSAL DATE] (the "Proposal"). This SOW incorporates the Proposal by reference.

2. Description of Services

Contractor shall perform the following during the Engagement Activation period:

- Review intake materials and engagement context
- Conduct initial discovery and stakeholder alignment
- Analyze stated financial, operational, or systems challenges
- Prepare engagement setup and evidence-based analysis framework
- Deliver preliminary findings and recommended next-phase scope

Detailed scope is defined in the Proposal. Services outside the Proposal require a written change order.

3. Deliverables

Contractor shall deliver:

- Engagement setup summary
 - Preliminary findings memo or executive summary
 - Recommended 30–90 day roadmap / next-phase scope outline
- 



5. Customer Responsibilities

Customer shall provide timely access to personnel, records, systems, and information reasonably required to perform the Services.

6. Acceptance

Deliverables are deemed accepted unless Customer submits written material nonconformity notice within ten (10) business days of delivery.

7. Invoicing Address

[Client.StreetAddress], [Client.City], [Client.State] [Client.PostalCode]

8. Activation retainer

Total Phase 1 engagement fee: \$[TOTAL PHASE 1 FEE]

Activation due at signing: \$[RETAINER AMOUNT] ([ACTIVATION CREDITED] credited toward total)

Balance due at delivery: \$[BALANCE DUE AT DELIVERY]

Retainer is due upon signing via the payment method in the Agreement.

Additional services beyond this SOW require prior written approval and separate fees.

